



CHAPTER 58.

An Act to amend the Army Act.

[2nd July 1915.] A.D. 1915.

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Section one hundred and forty-one of the Army Act (which prohibits the assignment of pay and other allowances) shall extend to allowances to wives and dependants of officers and soldiers ; and, accordingly, in that section, immediately before the word “ widow,” there shall be inserted the word “ wife,” and for the word “ relative ” there shall be substituted the word “ dependant.”

Provisions as to
separation
allowances.

(2) Subsection (9) of section one hundred and fifty-six of the Army Act (which restricts the pledging of identity certificates and life certificates by persons entitled to military pensions, pay and bounty) shall extend to separation or other allowances and relief, and accordingly, in that subsection, after the word “ bounty,” wherever it occurs, there shall be inserted the words “ allowance or relief.”

2. In paragraph (d) of subsection (3) of section 108A of the Army Act (which relates to billeting in cases of emergency), for the words “ and paragraph (2) of Part II. of the Second Schedule to the Army Act ” there shall be substituted “ so much of paragraph (2) of Part I. of the Second Schedule to this Act as limits the period during which meals are required to be furnished, and paragraph (2) of Part II. of that schedule.”

Amendment of
s. 108A (3) (d)
of Army Act.

3. In paragraph (2) of section one hundred and twenty-one of the Army Act (which relates to fraudulent claims for carriages, animals, &c.), after the words “ have his horse billeted ” there shall be inserted the words “ or personates or represents himself to be a person authorised to act in the purchase or hire, for the purposes of His Majesty's military service, of any carriage, animal, vessel, aircraft, food, forage, or stores.”

Amendment of
s. 121 (2) of
Army Act.

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Amendment of
s. 145 (2) of
Army Act.

4. Subsection (2) of section one hundred and forty-five of the Army Act (which relates to the liability of a soldier to maintain his wife and children) shall be repealed from the words "the Army Council or officer shall order" to the end of the subsection; and in lieu thereof there shall be substituted the following provision:—

"the Army Council or officer shall order to be deducted from the daily pay of the soldier, and to be appropriated in liquidation of the sum adjudged to be paid by such order or decree, or towards the maintenance of the wife or children of the soldier, as the case may be, in such manner as the Army Council or officer think or thinks fit, a portion of such daily pay not exceeding—

where the soldier is a warrant officer (Class I.) not holding an honorary commission—in respect of a wife or children, one shilling and sixpence, and in respect of a bastard child, one shilling;

where the soldier is a warrant officer (Class II.) not holding an honorary commission, or a non-commissioned officer who is not below the rank of sergeant—in respect of a wife or children, one shilling, and in respect of a bastard child, sevenpence;

in the case of any other soldier—in respect of a wife or children, sixpence, and in respect of a bastard child, fourpence.

Explanation of
s. 154 of Army
Act.

5. For removing any doubt it is hereby declared that section one hundred and fifty-four of the Army Act (which relates to the apprehension of deserters) applies to absentees without leave, and accordingly in that section, after the word "deserters," there shall be inserted the words "and absentees without leave," and after the word "deserter," wherever it occurs, there shall be inserted the words "or absentee without leave."

Amendment of
s. 156 (1) of
Army Act.

6. In subsection (1) of section one hundred and fifty-six of the Army Act (which relates to the acquisition from soldiers of military equipment, stores, and other things), for the words "a soldier" and "any soldier," wherever they occur in that subsection, there shall be substituted the words "an officer or soldier."

Amendment of
s. 190 (27) of
Army Act.

7. In paragraph (27) of section one hundred and ninety of the Army Act, for the words "the expression 'governor' as respects the presidency of Bengal means the Governor-General of India in Council and as respects the presidencies of Madras and Bombay means the Governor in Council of the presidency" there shall be substituted the words "the expression 'governor' as respects any presidency in India means the Governor in Council of the presidency."

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8. The amendments mentioned in the Schedule to this Act, being amendments consequential on the Army (Supply of Food, Forage, and Stores) Act, 1914, shall be made in the Army Act.

Amendments
consequential
on 4 & 5 Geo. 5.
c. 26.

9. This Act may be cited as the Army (Amendment) No. 2 Act, 1915.

Short title.

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Section 8.

SCHEDULE.AMENDMENTS CONSEQUENTIAL ON THE ARMY (SUPPLY OF
FOOD, FORAGE, AND STORES) ACT, 1914.

Provision of Army Act to be amended.	Amendment to be made.
Section 31 (1) (7) & (8)	For the words "vessels or aircraft" wherever they occur there shall be substituted the words "vessels, aircraft, food, forage, or stores." For the words "vessel or aircraft" wherever they occur there shall be substituted the words "vessel, aircraft, food, forage, or stores."
Section 115 (3) -	For the words "carriages, animals, vessels, and aircraft" there shall be substituted the words "carriages, animals, vessels, aircraft, food, forage, and stores." For the words "and shall apply to vessels and aircraft as if the expression carriages included vessels and aircraft" there shall be substituted the words "and shall apply to vessels, aircraft, food, forage, and stores in like manner in all respects as they apply to carriages."
Section 115 (4) -	For the words "carriages, animals, vessels, and aircraft" there shall be substituted the word "articles." For the words "carriage, animal, vessel, or aircraft" wherever they occur there shall be substituted the word "article." For the words "through which it travelled" there shall be substituted the words "through which it travelled or was carried."
Section 115 (6) -	For the words "vessels and aircraft" where they first occur there shall be substituted the words "vessels, aircraft, food, forage, and stores." For the words "to demand carriages, animals, vessels, and aircraft" there shall be substituted the words "to make such demand."
Section 115 (7) -	For the words "vessels and aircraft" there shall be substituted the words "vessels, aircraft, food, forage, and stores."
Section 115 (8) -	For the words "carriages, animals, vessels, or aircraft" there shall be substituted the word "articles." For the words "a carriage, animal, vessel, or aircraft" there shall be substituted the words "any such article." For the words "the said carriage, animal, vessel, or aircraft" there shall be substituted the words "the article requisitioned."

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Provision of Army Act to be amended.	Amendment to be made.
Section 115 (9) -	For the words "vessels and aircraft" there shall be substituted the words "vessels, aircraft, food, forage, and stores."
Section 116 (1) -	For the words "vessels or aircraft" there shall be substituted the words "vessels, aircraft, food, forage, or stores."
Section 116 (2) and (3)	For the words "carriage, animal, vessel, or aircraft" wherever they occur there shall be substituted the words "such article."
Section 117 -	For the words "a carriage, animal, vessel, or aircraft," "any carriage, animal, vessel, or aircraft," and "carriages, animals, vessels, or aircraft," there shall respectively be substituted the words "any article."
Section 119 (1) (b) -	For the words "owner or driver" there shall be substituted the words "owner of any article or the person in charge."
Section 121 (2) -	For the words "vessel or aircraft" there shall be substituted the words "vessel, aircraft, food, forage, or stores."

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FOR

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